

25TRCV01379 25TRCV01379

County: los-angeles

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Case Number: 25TRCV01379 Hearing Date: June 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JUAN JOSE SARDILLO

, et al.;

Plaintiffs,

vs.

AVIS BUDGET GROUP LLC

, et al.;

Defendants.

Case

No.:

25TRCV01379

Hearing

Date:

June
29, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1) specially appearing defendant TOSSAPON TAWEEPONG'S MOTION TO QUASH
PERSONAL SERVICE OF THE SUMMONS AND COMPLAINT

MOVING PARTY: Specially Appearing Defendant, Tossapon
Taweepong

RESPONDING PARTY: No opposition.

(1)

Specially

Appearing Defendant Tossapon Taweepong's Motion to Quash Personal Service of
the Summons and Complaint is GRANTED pursuant to Code of Civil Procedure section
418.10, subdivision (a)(1).

The Court considers the moving
papers filed on April 13, 2026. To date,
no opposition brief has been filed.

BACKGROUND

Factual Background

On April 30, 2025, plaintiffs
Juan Jose Sardillo and Jozzar Britania (collectively, "Plaintiffs") filed the
Complaint against defendant Avis Budget Group LLC, Tossapon Taweepong,
and DOES 1 through 50. The Complaint
includes two causes of action for (1) Negligence and (2) Negligent Entrustment.

On May 5, 2025, Plaintiffs filed an amendment to the Complaint, naming

Avis Budget Group, Inc. as DOE 1.

On March 20, 2026, Plaintiff filed a proof of service of summons, indicating that a non-registered process server from Bangkok, Thailand, personally served Taweepong with the summons and Complaint at a camping ground in Rayong Province, Thailand, on December 31, 2025. (March 20, 2026 PoS, ¶¶ 2-5.)

LEGAL STANDARD

A defendant may serve and file a notice of motion to quash service of summons on the grounds of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a).) Code of Civil Procedure section 418.10 provides the exclusive procedure for challenging personal jurisdiction at the outset. (Roy v. Superior Court (2005) 127 Cal.App.4th 337, 342.) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to section 418.10. (Code Civ. Proc., § 581, subd. (h).)

“A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” (Code Civ. Proc., § 410.10.) “The Due Process Clause protects an individual’s liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful ‘contacts, ties, or relations.’” (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471-472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend “traditional notions of fair play and substantial justice.” (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

“When a defendant moves to quash service of process, the plaintiff bears the initial burden of demonstrating facts justifying the exercise of jurisdiction. [Citation.] To carry this burden, the plaintiff must do more than merely allege facts; the plaintiff must present evidence sufficient to justify a finding that California may properly exercise jurisdiction over the defendant. [Citation.]” (ParaFi Digital Opportunities LP v. Egorov (2025) 108 Cal.App.5th 124, 133, internal citations and quotations omitted (ParaFi).) “This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered

as an affidavit supplying necessary facts.” (Jewish Defense Organization, Inc. v. Superior Court (1999) 72 Cal.App.4th 1045, 1055.) A process server’s proof of service creates a rebuttable presumption that service was valid, but only if the service declaration follows the statutory requirements regarding such proofs. (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390; Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1163.)

“If the plaintiff satisfies the initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable. [Citation.]” (ParaFi, supra, 108 Cal.App.5th at p. 133.)

“[A] party who moves to quash may—concurrently with or after filing a motion to quash—participate in the litigation and ‘no act’ by the party constitutes an appearance unless and until the proceedings on the motion to quash are finally decided adversely to that party.” (ViaView, Inc. v. Retzlaff (2016) 1 Cal.App.5th 198, 204.)

DISCUSSION

Specially Appearing Defendant Tossapon

Taweepong seeks to quash the service of Plaintiffs’ summons on the grounds that “Plaintiffs have not complied with the statutory requirements for service of the summons and complaint” pursuant to Code of Civil Procedure section 418.10. (Motion, p. 2:6-7.) Taweepong specifically asserts the following points: (1) the proof of service does not provide a specific address where Taweepong was allegedly served, (2) there is no description of Taweepong included in the proof of service, (3) there is no evidence that the server, Natphat Kositlert, is fluent in English and understood what he signed on February 4, 2026, when executing the proof of service, and (4) the proof of service does not appear to have been translated into Thai by a California Certified Interpreter. (Motion, pp. 3:17-27.) The Court concurs with the first assertion.

“If served under Section 415.10, 415.20, or 415.30, by the affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint

were delivered, and, if appropriate, the person's title or the capacity in which the person is served, and that the notice required by Section 412.30 appeared on the copy of the summons served, if in fact it did appear." (Code Civ. Proc., § 417.10, subd. (a).)

Although the proof of service states that Taweepong was served at "Camping Ground in Rayong Province, Thailand[.]" this information is inadequate to establish the place of service. (March 20, 2026 PoS, ¶ 4.) Numerous camping grounds could exist within Rayong Province, rendering this address insufficiently specific. This address should enable "the recipient to be located in the future, should the claim of service be challenged." (Trackman v. Kenney (2010) 187 Cal.App.4th 175, 184.)

The Court finds the remaining arguments to be unpersuasive, as Taweepong fails to reference any pertinent case law, statutes, or rules of court that would necessitate a description of Taweepong in the proof of service, a confirmation of Kositlert's fluency in English and understanding of the document he signed on February 4, 2026, or a translation of the proof of service performed by a California Certified Interpreter.

Accordingly, the Court GRANTS Taweepong's motion to quash.

ORDERS

1)
Specially Appearing Defendant Tossapon Taweepong's
Motion to Quash Personal Service of the Summons and Complaint is GRANTED.

2)
The
Court will give notice of this ruling.

IT IS SO ORDERED.

DATED: June 29, 2026

Tamara
Hall

Judge
of the Superior Court